

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liabile-D excess burden	Gross outcome error	Total expenditures
American	0.183	0.204	0.005	0.303	0.167
Trial Fee-Shifting	0.131	0.125	0.016	0.195	0.116
Complete Fee-Shifting	0.160	0.160	0.017	0.242	0.165